

25NNCV08436 25NNCV08436

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-28

Motion: DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 25NNCV08436 Hearing Date: July 28, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JEHANGIR MEHER,

Plaintiff(s),

vs.

ELIZABETH
MEHER,

Defendant(s).

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CASE NO.: 25NNCV08436

[TENTATIVE]

ORDER RE: DEMURRER TO FIRST AMENDED COMPLAINT

Dept.

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8:30

a.m.

July 28,

2026

I. INTRODUCTION

On November

25, 2025, plaintiff Jehangir Meher ("Plaintiff") filed this action against defendant Elizabeth Meher ("Defendant") asserting a "deliberate pattern of financial deceit, concealment, and neglect" concerning the real property located at 1202 Arden Rd., Pasadena, California 91106 ("Arden Property").

On

May 20, 2026, Plaintiff filed the operative First Amended Complaint ("FAC"). The parties were formerly married and jointly owned the Arden Property. (FAC, ¶ 22.) After the parties separated, Defendant requested and obtained exclusive temporary use, possession, and control of the Arden Property. (FAC, ¶23.) The FAC references a Dissolution Judgment in which the Arden Property was awarded to

Plaintiff and Plaintiff asserts that he is not seeking to relitigate issues raised in previous family-law proceedings. Instead, Plaintiff argues that his claims arise from independent torts due to Defendant's failure to perform necessary repairs to protect the Arden Property from significant harm while the dissolution proceedings were pending.

On June 23, 2026, Defendant filed this demurrer to the FAC. Defendant demurs to Plaintiff's causes of action for fraudulent concealment, intentional misrepresentation, negligent misrepresentation, and negligence on the grounds that they arise from the same parties, facts, and issues as those litigated in the parties' dissolution proceedings and would require this Court to adjudicate matters previously addressed or reserved for determination by the family court. Defendant further argues that each cause of action is not pleaded with particularity, fails to state facts sufficient to constitute a cause of action, and is barred by the applicable statute of limitations.

II. LEGAL STANDARD

A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) "We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]" (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 ["the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

III. DISCUSSION

Defendant argues that Plaintiff's claims arise from the dispute concerning the condition, repair, and management of the Arden Property which was already addressed in the couple's dissolution proceeding (LASC Case No. 19PDFL01162). Defendant contends that the family court already issued a partial stipulated judgment on November 18, 2025 ("Judgment"), specifically addressing these issues and retaining

exclusive jurisdiction to determine any future disputes. (RJN Ex. A.) Defendant requests the Court take judicial notice of various pleadings and orders, all of which confirm that the parties' obligations with respect to the Arden Property were considered and discussed before the family court.

In opposition, Plaintiff claims that he is asserting independent tort claims. But, "[a]lmost all events in family law litigation can be reframed as civil law actions if a litigant wants to be creative with various causes of action. (Neal v. Superior Court (2001) 90 Cal.App.4th 22, 25.) The is what Plaintiff seeks to do here. The FAC essentially raises issues over the parties' respective obligations towards the Property and whether they were fulfilled – issues which were addressed in family court and in the Judgment. Plaintiff alleges in his FAC that he discovered Defendant's alleged misconduct underlying this action in July 2023. (FAC, ¶ 19.) But the Judgment entered into two years later affirmed that "by entering into this partial stipulated judgment, the parties intend to resolve the issues addressed herein, to effect a final settlement of their respective claims regarding characterization, valuation, and division of community and separate property assets, debts, obligations, liabilities, attorneys' fees and costs." (RJN, Ex. A, ¶ 2.14.)

Both parties also waived the right to conduct further discovery regarding the issues set forth in the judgment and acknowledged that they "entered into [the stipulated judgment] voluntarily and free from any fraud, duress, or other undue influence of which they were aware." (Id., ¶¶ 2.19, 2.20.) Moreover, the Judgment awarded the Arden Property to Plaintiff and provided that he is solely responsible for all debts, obligations, and liabilities associated with the Property "no matter when incurred". (Id., ¶ 3.3(1)(a).) The Judgment also provided for a "non-taxable equalization payment" in order to "equalize the division of real estate interests, assets and debts as between the parties." (Id., ¶ 7.1.) The parties agreed that the equalization payment "equitably divides all community and separate property, reimbursements, charges, reallocation, and/or any other claims as between the Parties." (Id., ¶ 7.4.)

In light of this comprehensive language and the pleadings which show that the parties' dispute over the maintenance and upkeep of the Arden Property was squarely before the family court at various times, the Court concludes that Plaintiff's civil tort claims for damages to the Arden Property are duplicative of those addressed in the parties'

dissolution proceedings and Judgment. Plaintiff essentially seeks to relitigate the value of the Arden Property and recover the cost to repair the Property from Defendant. Accordingly, Defendant's demurrer is SUSTAINED in its entirety without leave to amend.

IV. CONCLUSION

Defendant's demurrer is SUSTAINED without leave to amend.

Defendant to give notice.

Dated
this 28th
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.